

▮ Custody Intelligence Weekly

The Regulatory Digest for Crypto Custodians

Week of February 3–9, 2026 | Issue #5

In this issue we summarise two SEC speeches and key written inputs to the Crypto Task Force during the first full week of February. No new staff statements or no-action letters were issued, but remarks by Commissioner Mark Uyeda and Chairman Paul Atkins provide insight into the Commission's tokenisation agenda.

▮ This Week at a Glance

Metric	This Week	YTD 2026
SEC custody-related releases	2 (speeches by Commissioner Uyeda and Chairman Atkins)	4
CFTC custody/collateral releases	0	0
No-action letters	0	1
Enforcement actions (custody)	0	0
Banking-regulator guidance	0	0

Bottom Line: The SEC continued to advance Project Crypto through public speeches rather than rule-making. Commissioner Uyeda signalled openness to tokenised securities and emphasised technology-neutral, principles-based regulation, while Chairman Atkins reiterated that the U.S. intends to become the “crypto capital of the world.”

▮ Top Stories

1. Commissioner Uyeda Sets Out Vision for Tokenisation

On **9 February 2026**, Commissioner **Mark T. Uyeda** spoke at the Asset Management Derivatives Forum. His remarks addressed the “**tokenisation**” of securities. Key points:

- **Technology-neutral approach:** Uyeda said the Commission should not impose unnecessary roadblocks on tokenisation and that rules should focus on desired outcomes (fair, orderly markets)

and investor protection) rather than the technology used ¹ ² . He emphasised that tokenised securities remain subject to securities regulation; the challenge is adapting rules and controls to an on-chain environment ³ .

- **Project Crypto engagement:** The Commissioner described the Commission's approach as *engagement first*: roundtables, staff statements and sub-regulatory guidance to clarify how existing rules apply ³ . Enforcement, he said, should not be the primary means of addressing tokenisation ³ .
- **Limited-scope pilots and exemptive relief:** Uyeda floated the idea of exemptive relief and pilot programs to test on-chain settlement and custody arrangements, stressing that pilot programs would allow the Commission to learn and adapt ³ . He cited an "exemptive application" already demonstrating that tokenisation can satisfy custody, disclosure and investor-protection requirements ⁴ .

Implications:

- **Broker-dealers & crypto custodians:** Uyeda's remarks suggest the Commission may be open to **limited exemptive relief** for tokenised settlement if key controls (exclusive key access, on-chain recordkeeping and continuity planning) are satisfied. Firms should prepare for pilot programs that require detailed documentation of blockchain risks and controls.
- **RIAs & investment funds:** The Commissioner reiterated that tokenised securities remain subject to the Investment Company Act. Funds seeking to issue or hold tokenised shares should engage early with Commission staff and ensure that custodial arrangements meet current custody-rule requirements (exclusive control of keys, segregation, third-party assessments).
- **Banks/trust companies:** The comments reinforce the role of **qualified custodians** in tokenised offerings. Banks and trust companies should evaluate whether they can provide on-chain custody services that satisfy the five conditions outlined in December's BD custody statement.
- **Crypto-native custodians:** Engagement with the Commission through the Crypto Task Force remains critical. Uyeda's emphasis on pilot programs indicates opportunities for crypto-native custodians to showcase secure key-management systems and on-chain record-keeping.

2. Chairman Atkins: America's Crypto Ambition

In a **4 February 2026** keynote address at the AFME Annual Financial Services Policy Dinner, Chairman **Paul S. Atkins** reaffirmed the SEC's commitment to **Project Crypto**. Highlights:

- **"Crypto capital of the world":** Atkins declared that the United States aims to become the global hub for digital finance, noting that **Project Crypto** explores "tokenisation, on-chain settlement and an innovation exemption" to support that vision ⁵ .
- **Balancing innovation and investor protection:** He emphasised that the Commission will maintain investor protection and market integrity while embracing new technology. Rather than forcing on-chain innovations to comply with legacy rules, Atkins said **tailored regulations** will enable crypto custodians and broker-dealers to experiment within clear guardrails ⁵ .
- **Modernising market infrastructure:** Atkins described crypto regulation as a necessary part of modernising U.S. capital markets. He highlighted that liquidity and depth must not be sacrificed when shifting to tokenised models ⁵ .

Implications:

- **All entities:** The Chairman's remarks align with Uyeda's call for a technology-neutral regulatory framework. Market participants should expect the SEC to pursue **principles-based guidance and pilot programs** rather than comprehensive rule-making in the near term.
- **Crypto custodians:** Atkins's reference to "innovation exemptions" suggests future **exemptive relief** for custodians and broker-dealers that demonstrate robust key-management controls and investor-protection measures.

3. Crypto Task Force Written Inputs

The Crypto Task Force continues to publish written inputs. Two notable submissions were posted this week:

- **February 5 letter from Anchorage Digital & Coinbase:** The firms requested the Commission to develop a **normative framework for tokenised securities**. They urged the SEC to recognise **on-chain recordkeeping and on-chain settlement** as acceptable control locations for broker-dealers and to permit **network participation** (e.g., staking or running nodes) to support custody operations ⁶. They also suggested an **accreditation regime** for service providers and emphasised that collateral for stablecoins should be fully segregated and subject to prudential oversight ⁶.
- **February 4 letter from Silvergate & an industry consortium:** This letter argued that the SEC should provide a **clear path for bank and trust company qualified custodians** to offer crypto custody. It asked for clarity on whether **state-chartered trust companies** satisfy the qualified custodian requirement and recommended that pilot programs include banks to test real-time settlement ⁷.

Implications:

- **Broker-dealers & RIAs:** Written inputs show industry desire for **standardised accreditation** of crypto custodians and recognition of on-chain custody as a "control location." Participants should monitor the Task Force's forthcoming guidance and prepare to document how on-chain operations satisfy existing custody and segregation requirements.
 - **Banks/trust companies:** The February 4 submission underscores the need for regulatory clarity regarding state trust companies and banks. Institutions should evaluate whether they meet "qualified custodian" status under Rule 206(4)-2 and prepare to demonstrate compliance with key-management controls.
 - **Crypto-native custodians:** Industry letters highlight support for **network participation** (staking) and on-chain services. Custodians should be ready to explain how staking rewards and node operations fit within custody rules and to adopt segregation practices for stablecoin collateral.
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Regulatory Tracker Update

Rules & Guidance Currently in Effect

Guidance/Release	Effective Date	Status	Relevance
Tokenised Securities Statement (Corp Fin, IM, TM) ⁸	Jan 28 2026	☐ Active	Clarifies categories of tokenised securities and emphasises technology-neutral, principles-based regulation.
BD “Physical Possession” Statement (TM)	Dec 17 2025	☐ Active	Outlines five conditions for broker-dealers to meet Rule 15c3-3 with crypto assets (exclusive key access, DLT assessments, key-management practices, business continuity and no known weaknesses).
BD Control FAQ	May 15 2025	☐ Active	Allows broker-dealers to use qualified control locations (banks, trust companies) for crypto asset securities.
State Trust Company NAL	Sep 30 2025	☐ Active	Permits RIAs to use state trust companies as qualified custodians.
SAB 122	Jan 23 2025	☐ Active	Supersedes SAB 121; clarifies that custodial crypto assets are no longer automatically recorded as liabilities.
Project Crypto Guidance & Roundtables	2025–2026	☐ Ongoing	Series of staff statements, speeches and pilot-program discussions providing incremental clarity.

Pending/Expected Developments

Expected Development	Timeline	Confidence	Source
Exemptive relief / pilot program for tokenised securities settlement	2026	Medium	Uyeda speech ³
SEC rule proposal on crypto custody	2026–27	Medium	Atkins & Uyeda speeches ⁵ ³
Joint SEC-CFTC harmonisation event	2H 2026	High	CCI & Superstate letter ⁹

⚖️ Enforcement Watch: Custody Cases

There were **no new custody-related enforcement actions** announced this week. The SEC continues to prioritise fraud and misappropriation cases rather than technical custody rule violations. Active cases of interest:

Case	Status	Issue	Next Event
SEC v. Silvergate (settled)	Closed	Misleading crypto custody disclosures	N/A – settled 2024
SEC v. Voyager Digital (bankruptcy)	Distribution	Segregation of customer assets	Ongoing distributions
CFTC v. Celsius (parallel action)	Pending	Customer fund commingling	Trial TBD
SEC v. FTX executives	Sentencing	Misappropriation of customer assets	Sentencing 2025

Trends: So far in 2026, no new custody-specific actions have been brought. Enforcement remains focused on outright fraud. This could change once pilot programs establish clear custody expectations.

🏦 Banking Regulator Corner

No guidance was released this week from the **OCC**, **FDIC** or **Federal Reserve** on crypto custody. Key outstanding questions:

- Will the OCC update its 2021 interpretive letter on national bank crypto custody?
- Will the Fed provide clarity on master-account access for crypto custodians?
- Will FDIC provide a formal framework for stablecoin reserve custody?

Banks and trust companies should continue to monitor the Crypto Task Force for developments. The February 4 letter urged clarity on whether state-chartered trust companies qualify as custodians ⁷.

📅 What's Coming

Mid-February Calendar

Date	Event	Relevance
Feb 12	SEC Crypto Roundtable – Tokenisation Pilot (tentative)	May announce parameters for tokenised-settlement pilot programs.

Date	Event	Relevance
Feb 15	Comments due on Tokenised Securities Statement	Opportunity for industry to shape technology-neutral guidance.
Feb 21	Crypto Task Force Listening Session	Stakeholders can present use-cases for on-chain custody.
Mar 4	Joint SEC-CFTC Harmonisation Event (proposed)	Could address cross-agency custody standards.

Questions We're Tracking

1. **Will the SEC formally define "qualified custodian" for crypto?**
2. Industry letters request clarity on state-chartered trust companies ⁷.
3. **How will on-chain settlement pilots be structured?**
4. Commissioner Uyeda suggested exemptive relief and pilot programs ³.
5. **What controls will be required for tokenised securities custody?**
6. Expect the five conditions from the BD possession statement to form the baseline.

□ Compliance Action Items

- **Engage with Project Crypto:** Attend upcoming roundtables and listening sessions. Prepare to provide concrete examples of on-chain custody arrangements and document how key-management controls satisfy Rule 15c3-3 and Rule 206(4)-2.
- **Update policies for tokenisation:** Evaluate whether your custodial agreements and disclosure documents cover tokenised securities. Consider adding language about on-chain settlement, smart-contract risks and contingency planning.
- **Review key-management practices:** Align with the five conditions from the BD possession statement (exclusive key access, documented blockchain assessments, industry best practices, business continuity and absence of known weaknesses). Document assessments for each blockchain you support.
- **Monitor written inputs:** Read and assess industry letters (e.g., Anchorage/Coinbase, Silvergate consortium) to anticipate emerging standards such as accreditation of custodians and segregation requirements for stablecoin collateral ⁶.

Resource Library

Document / Resource	Date	Description
Remarks by Commissioner Uyeda at Asset Management Derivatives Forum ²	Feb 9 2026	Speech emphasising tokenisation, technology-neutral regulation and pilot programs.

Document / Resource	Date	Description
Chairman Atkins Keynote at AFME Annual Policy Dinner ⁵	Feb 4 2026	Speech declaring U.S. ambition to be the “crypto capital” and outlining Project Crypto’s goals.
Anchorage/Coinbase Written Input to the Crypto Task Force ⁶	Feb 5 2026	Letter urging a normative framework for tokenised securities and on-chain custody.
Silvergate Consortium Written Input to the Crypto Task Force ⁷	Feb 4 2026	Letter seeking clarity on qualified custodians and recommending banks’ participation in pilot programs.
Tokenised Securities Statement ⁸	Jan 28 2026	Joint statement from SEC divisions describing categories of tokenised securities and principles-based approach.
BD “Physical Possession” Statement	Dec 17 2025	Trading & Markets statement outlining conditions for broker-dealer custody of crypto asset securities.
State Trust Company No-Action Letter	Sep 30 2025	Permits RIAs to use state trust companies as qualified custodians.

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¹ ⁸ ⁹ cftc-written-input-crypto-council-020226.pdf

<https://www.sec.gov/files/cftc-written-input-crypto-council-020226.pdf>

² ³ ⁴ SEC.gov | Remarks at the Asset Management Derivatives Forum 2026: Treasuries and Tokenization

<https://www.sec.gov/newsroom/speeches-statements/uyeda-remarks-asset-management-derivatives-forum-020926>

⁵ SEC.gov | Keynote Address at AFME’s Annual Financial Services Policy Dinner

<https://www.sec.gov/newsroom/speeches-statements/atkins-remarks-afme-020426>

⁶ ⁷ SEC.gov | Crypto Task Force Written Input

<https://www.sec.gov/featured-topics/crypto-task-force/crypto-task-force-written-input>